

BARRETT, J., concurring in part

current authority over many Government functions, and it may sometimes use that authority to regulate the President's official conduct, including by criminal statute. Article II poses no barrier to prosecution in such cases.

I would thus assess the validity of criminal charges predicated on most official acts—*i. e.*, those falling outside of the President's core executive power—in two steps. The first question is whether the relevant criminal statute reaches the President's official conduct. Not every broadly worded statute does. For example, § 956 covers conspiracy to murder in a foreign country and does not expressly exclude the President's decision to, say, order a hostage rescue mission abroad. 18 U. S. C. § 956(a). The underlying murder statute, however, covers only “unlawful” killings. § 1111. The Office of Legal Counsel has interpreted that phrase to reflect a public-authority exception for official acts involving the military and law enforcement. Memorandum from D. Barron, Acting Assistant Atty. Gen., to E. Holder, Atty. Gen., Re: Applicability of Federal Criminal Laws and the Constitution to Contemplated Lethal Operations Against Shaykh Anwar al-Aulaqi 12–19 (July 16, 2010); see also Brief for United States 29–30; *post*, at 671–672, and n. 3 (SOTOMAYOR, J., dissenting). I express no view about the merits of that interpretation, but it shows that the threshold question of statutory interpretation is a nontrivial step.

If the statute covers the alleged official conduct, the prosecution may proceed only if applying it in the circumstances poses no “‘dange[r] of intrusion on the authority and functions of the Executive Branch.’” *Ante*, at 615 (quoting *Nixon v. Fitzgerald*, 457 U. S. 731, 754 (1982)). On remand, the lower courts will have to apply that standard to various

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U. S. 197, 213–215 (2020); *ante*, at 619–621. I do not understand the Court to hold that all exercises of the Take Care power fall within the core executive power. Cf. *post*, at 679 (SOTOMAYOR, J., dissenting). I agree with the dissent that the Constitution does not justify such an expansive view. *Ibid.*